

Retaliation Claim Risk Assessment

Matter HC-2025-0198 | Meridian Health Systems

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Assessment

Meridian has legitimate performance evidence, but the timing creates meaningful retaliation risk. Lopez's 2024 review was satisfactory, formal discipline began approximately one month after the protected report, and Compliance substantiated the underlying duplicate-billing issue.

Risk Factors

The strongest plaintiff evidence is temporal proximity combined with Ross's account of Mills's 'unnecessary attention' comment. Meridian's strongest defense is the January supervisor note and documented missed deadlines during the PIP.

Recommendation

Consider early mediation. A defensible settlement range should reflect litigation cost and the possibility that a factfinder credits the retaliation theory even without direct evidence.